

Unsafe Building September 10, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=2hrEhLLzsg
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Unsafe Building Hearing Authority — Meeting Summary

Meeting Date: September 10, 2024

Body: Unsafe Building Hearing Authority

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the September 10th meeting of the Unsafe Building Hearing Authority. The Unsafe Building Law (IC 36-7-9) was formally entered into the record.
- **Attendance:**
 - **Members Present:** Gretchen Cheeseman, Mayor Dan Ridenour, and James Heimck.
 - **City Staff:** Taylor Reed, Melinda Coffee, Hannah Collins, Danny Han, Richard Rawlings (acting as administrators), John Moyahan (City Attorney), and Courtney Walker (Reporting Secretary).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** All expected participants stood and were sworn in under oath collectively prior to case hearings.
- **Approval of Minutes:** *Not explicitly detailed in the transcript.*

4. Substantive Business & Board Action

00:07:31 Case 9: 3125 East Gilbert Street (New Rehab Order)

- **Sponsor / Presenter:** City Staff / David Norton (Property Owner)
- **Deliberation Summary:** The property exhibited water damage from a leaky roof, exposed wood, interior holes, rotted wood, and damaged gutters. The owner stated the main roof issue had been fixed via a loan, and interior remodeling started after a tenant moved out.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued to November 12, 2024. The owner must pass an interior inspection prior to the next hearing.

00:11:19 Case 2: 2321 West 10th Street (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Kristen Hail (Representative for Owner Robin / Estate of Carol Marlo)
- **Deliberation Summary:** The property suffered fire damage and was tagged on July 13th. The owner is dealing with an estate following her mother's passing and has gutted the interior with the help of a city-provided dumpster.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed, requiring an inspection and 30-day continuance for a schedule of continued rehab.

00:13:53 Case 10: 309 North Grafton Avenue (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Dan Poston (Property Owner)
- **Deliberation Summary:** Staff noted foundation cracks and a roof leak (suspected firework damage). The owner argued the foundation crack is minor mortar cracking with no basement leakage, and that the house has primarily served as a storage unit for the last 5 years while he rebuilds houses for a living. He had a sale pending that was delayed due to the order.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 30 days, requiring an inspection prior to the next hearing.

00:18:42 Case 11: 1724 East Harvard Avenue (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Ralph McKenna (Representative for Owners/Wife/Mother-in-law)
- **Deliberation Summary:** Addressed an out-building (one-car garage) tagged for a roof with holes, rotted fascia, missing gutters, and a broken door frame. (Initial yard violations involving an un-enclosed pool, camper, and trash had already been cleared). The property is in a floodway/floodplain, limiting quick major work. The owner requested time to save money on disability/social security to repair it himself.

- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed, allowing the owner to tarp the building and continue to January 14, 2025.

00:25:06 Case 13: 500 West Howard Street (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Lydia Watson (Director of Real Estate Development, Affordable Home Matters Indiana LLC)
- **Deliberation Summary:** Part of the "Ready Old West End" project in partnership with PathStone and the Muncie Land Bank. Permits were pulled on August 28th; \$58,000 has been spent on exterior framing, roof repairs, interior demo, framing, and HVAC. Project completion is slated for February 2027. Board members praised the intent to preserve historic character (e.g., fish scale siding).
- **Action & Vote Disposition:** Approved by Voice Vote. The order was affirmed and moved to administrative enforcement.

00:28:16 Case 16: 1900 Block of East 26th Street / 3306 South Juniper (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Kina Stra (Muncie Housing Authority)
- **Deliberation Summary:** The resident was transferred to an ADA-accommodated unit on August 5th but faced delays moving belongings due to a disability. Muncie Housing Authority assisted with moving her belongings. Maintenance will mitigate issues once keys are handed over.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 60 days.

00:31:34 Case 17: 608 East Linda Lane (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Angela (Property Owner)
- **Deliberation Summary:** Tagged on July 13th for siding corner trim pulling away, exposed wood, missing windows, and missing front guttering. The owner requested extra time due to recent shoulder surgery, and noted her brother will help.
- **Item-Specific Public Input:**
 - **00:33:50 Ralph Privet** (Resident, 2905 Northwestwood / Granville Neighborhood Association): Spoke in support, noting the Granville Neighborhood Association offers up to \$1,500 in exterior repair reimbursement to homeowners for completing repairs.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 90 days (December 10th).

00:35:51 Case 26: 2808 Northwestwood (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Dylan Joe Kelly Hennis (Co-Owner)

- **Deliberation Summary:** The backyard and porch have been cleared/removed. A vacant vehicle remains; the board informed the co-owner he has the legal right to tow it despite registration details. He plans to sell the house due to difficulties with his uncooperative co-owner/sister.
- **Item-Specific Public Input:**
 - **00:38:46 Ralph Privet** (Granville Neighborhood Association): Noted the neighborhood previously helped clear backyard junk with the sister's permission, and expressed gladness that the brother is involved and the property is listed on Zillow for sale.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 60 days.

00:40:36 Case 18: 810 East Main Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Carl Long (New Property Owner)
- **Deliberation Summary:** The new owner purchased the property from the owner and needs to coordinate shingle and foundation work with the Preservation Commission.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 90 days.

00:43:18 Cases 29, 30, & 31: Middletown Property Group Properties

- **Properties:**
 - **00:43:25** Case 29: 720 West Centennial (Units A, 8, 1, 2)
 - **00:43:27** Case 30: 1109 East Kirby (Unit 1/B)
 - **00:43:28** Case 31: 2106 West Main Street (Duplex/Former Triplex & Garage)
- **Sponsor / Presenter:** Dakota Crabtree (Middletown Property Group)
- **Deliberation Summary:**
 - *720 West Centennial:* Addressed door repairs, window sealing, gutter bids, and a stubborn plumbing clog/drywall moisture issue. Requested 30 days.
 - *1109 East Kirby:* Roof leaks, gutters, and ceiling drywall repaired/treated; awaiting paint/sanding and foundation mortar fixes. Requested 30 days.
 - *2106 West Main:* Basement drywall removed/treated for organic growth and standing water/mosquitoes; garage slated for demolition permit. Requested 30 days.
- **Action & Vote Disposition:** All three cases were approved by Voice Vote for 30-day continuances with required inspections.

00:49:16 Case 32: 2301 West 9th Street (New Demo Order)

- **Sponsor / Presenter:** City Staff / Penny Finny (Owner)
- **Deliberation Summary:** The church building was previously demolished by the owner after her father's passing, leaving the foundation. The owners live out of town and intend

to build a residential house on the site, having collected some materials. They met with the building department earlier in the day to clarify licensing and permit requirements.

- **Action & Vote Disposition:** Approved by Voice Vote. The demo order was **discharged** so the owners can proceed through the building commissioner's office and permitting process.

00:53:00 Case 33: 526 North Bennett Street (New Rehab Order)

- **Sponsor / Presenter:** City Staff / Dino Bulger Basic (Property Manager, Land Trust)
- **Deliberation Summary:** Sold on an unrecorded land contract on July 3, 2024, to Jessica Lynn Whitmire. The previous building permit expired, and though some progress has been made, no inspections or permit renewals have been logged. Because the land contract is unrecorded, the land trust remains legally responsible.
- **Action & Vote Disposition:** Approved by Voice Vote. The rehab order was affirmed and continued for 30 days to allow the land contract buyer to appear.

00:56:02 Case 35: 217 South Cole Avenue (New Demo Order)

- **Sponsor / Presenter:** City Staff / Kaden K. Auto (Representative for RKM LLC, Under Contract)
- **Deliberation Summary:** RKM LLC is under contract to purchase the property (closing expected by September 24th). The back structure has collapsed due to water damage. The buyer plans to completely restructure the rear, repair fascia/sottits, undertake a full interior remodel, and eventually resell the property.
- **Action & Vote Disposition:** Approved by Voice Vote. The demo order was affirmed and continued for 90 days to allow closing and permit acquisition.

00:58:46 Case 42: 1520 West 8th Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Troy Coats (Property Owner)
- **Deliberation Summary:** The owner stated he was unable to sell the fire-damaged property or donate it to Habitat for Humanity. It is scheduled for the tax sale on October 14th. He asked about quitting-claiming it to a buyer or turning it over to the city. The board noted the city does not take possession directly, but he can mow it in the interim.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days.

00:53:34 Case 45: 626 West 9th Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Nicholas Suckinson (Property Owner)
- **Deliberation Summary:** The owner noted pending legal charges have delayed his employment and community development loan process for roof repairs. He is scheduled to pay off his elevated tax sale balance (\$890) this Friday.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 90 days.

01:07:53 Case 46: 1621 West 16th Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Heather Manship (Blue Sky)
- **Deliberation Summary:** The owner is currently hospitalized. The property was listed for sale yesterday at \$17,000. No inspection was completed since the last hearing.
- **Action & Vote Disposition:** Approved by Voice Vote. Assessed a **\$150 fine** for failure to get an inspection, and continued for 60 days.

01:10:22 Case 48: 1600 East 24th Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Yuan Clark (Property Owner) & Cornelius Dolls (Interested Party)
- **Deliberation Summary:** The owner has an upcoming progress inspection scheduled for September 15th. Flooring and HVAC installation remain, and the owner requested additional time.
- **Action & Vote Disposition:** Approved by Voice Vote. The order was affirmed and continued for 90 days with a required inspection.

01:12:32 Case 49: 1001 West 29th Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Heather McKibben (Representative)
- **Deliberation Summary:** A new service manager (Jim) has been hired and is being trained. The property passed its EPA inspection. Fourteen cars were removed/sold in August, though no scrap cars have been processed yet due to system overwhelm. City inspector noted four specific items required within 30 days: removing 4 specific vehicles in the back with trees growing through them, cutting back overgrowth, covering/removing motor piles, removing blue mystery liquid barrels, and establishing a plan/barrier for the fencing to meet zoning requirements against neighboring residential homes.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 30 days with a required inspection focusing on the 4 agreed-upon items.

01:24:31 Case 50: 502 East Adams Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Javik (Southwest Units LLC, Owner) & Tracy Green (Previous Tenant)
- **Deliberation Summary:** Following an April fire, the owner has filled a 40-yard dumpster (picked up today) and is collecting contractor quotes (\$184,000 estimated) for insurance review and approval before pulling building permits.
- **Item-Specific Public Input:**
 - **01:31:42 Tracy Green** (Previous Tenant): Confirmed electrical issues (lack of outlets) contributed to the fire conditions.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days for a progress update.

01:34:11 Case 51: 333 East North Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Major Robovic (Owner) & Tracy Daughter (Former Tenant / Interested Party)
- **Deliberation Summary:** The owner stated they wrapped windows/doors, ordered replacement windows, and spent ~\$8,000 on the second tag items.
- **Item-Specific Public Input:**
 - [01:32:32 Tracy Daughter](#) (Former Tenant): Voiced extreme frustration regarding landlord harassment and an unmanaged cat stuck in a crawlspace.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days with a required inspection.

01:41:38 Case 52: 501 North Bennett Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Melissa Hendris (Resident / Daughter of deceased owner Davido)
- **Deliberation Summary:** The speaker is a full-time business student living in the home. Her sister holds co-ownership rights, but refuses communication. The property is heading to tax sale next month, and she plans to move out if it sells as she cannot afford the back taxes (\$7,500–\$8,000).
- **Action & Vote Disposition:** Approved by Voice Vote. Moved to **non-compliance**.

01:46:00 Cases 55, 56, & 57: Carl Long Properties

- **Properties:**
 - [01:46:00](#) Case 55: 1310 East Jackson Street (Release)
 - [01:46:58](#) Case 56: 1414 East Jackson Street (Rehab Order)
 - [01:47:45](#) Case 57: 2007 South Elm Street (Rehab Order)
- **Sponsor / Presenter:** Carl Long (Property Owner)
- **Deliberation Summary:**
 - *1310 East Jackson:* Completed all required repairs outlined by the inspector. (Approved for Release).
 - *1414 East Jackson:* Needs additional siding, foundation work, and windows. Requested a permit and 90 days.
 - *2007 South Elm:* New windows, repaired foundation, siding, and electrical installed; needs porch work, rear siding, and a roof leak fixed.
- **Action & Vote Disposition:**
 - Case 55: **Approved by Voice Vote for Release.**
 - Cases 56 & 57: Approved by Voice Vote for 90-day continuances.

01:48:52 Case 60: 1322 East Jackson Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Adel Laesca (Property Owner)

- **Deliberation Summary:** A new roof was installed last year, windows were updated recently, and lawn/trash was attended to on the day of the hearing. However, openings remain unboarded and no inspection was completed.
- **Action & Vote Disposition:** Approved by Voice Vote. Assessed a **\$150 fine** for missing the inspection, with a 30-day continuance and required inspection.

01:52:31 Case 61: 2022 South Jefferson Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Cody Wallace (KT Investment Homes)
- **Deliberation Summary:** Gutters are currently being installed. Foundation options are being reviewed with local contractors and city staff. A tenant was recently placed in the home prior to full completion of the unsafe order; upon realizing this was a violation, the tenant was moved out today.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days with a required inspection.

01:56:25 Case 63: 1723 South Madison Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / David Norton (Owner)
- **Deliberation Summary:** Siding work is nearly complete (about 1–2 squares remaining), windows replaced, and exterior doors fixed. The owner received a loan and uses his construction crew to work on projects when outside work slows down.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days.

02:00:12 Case 65: 921 South Penn Street (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Julie Sims (Interested Party)
- **Deliberation Summary:** The property was recently sold to Andrea Edwards. The new owner is taking over.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days to coordinate with the new owner.

02:02:53 Case 66: 912-914 West Power Street (Release)

- **Sponsor / Presenter:** City Staff / Chantel Hughes (Owner)
- **Deliberation Summary:** All required work has been successfully finished.
- **Action & Vote Disposition:** Approved by Voice Vote for **Release**.

02:03:43 Cases 70 & 71: Middletown Property Group Properties

- **Properties:**
 - 02:03:43 Case 70: 115 East 13th Street
 - 02:05:43 Case 71: 1127 South Jefferson Street
- **Sponsor / Presenter:** Dakota Crabtree (Middletown Property Group)

- **Deliberation Summary:**
 - *115 East 13th St:* Permits obtained; contractor is finishing 1127 Jefferson before moving to 13th Street.
 - *1127 South Jefferson:* Electric signed off by the city; renovations nearly complete. Board inquired about garage foundation wall removal for parking.
- **Action & Vote Disposition:**
 - Case 70 (13th St): Approved by Voice Vote for a 60-day continuance.
 - Case 71 (Jefferson St): Approved by Voice Vote for a 60-day continuance.

02:07:03 Case 72: 212 University Avenue (Continued Rehab Order)

- **Sponsor / Presenter:** Dakota Crabtree (Middletown Property Group)
- **Deliberation Summary:** Tenants have vacated. Architectural drawings and diagrams are completed, and state-level permits have been submitted and are pending approval. Plans include installing two wood staircases (removing rusted metal) and exploring a mural on the exterior.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 120 days (January hearing).

02:09:18 Case 73: 2204 South Pine Street (Continued Rehab Order)

- **Sponsor / Presenter:** Dakota Crabtree (Middletown Property Group)
- **Deliberation Summary:** Noted as ready for a final inspection.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 30 days for inspection (releasable upon passing).

02:09:59 Case 79: 700 South Point Avenue (Continued Rehab Order)

- **Sponsor / Presenter:** City Staff / Property Owner
- **Deliberation Summary:** The owner needs water turned back on to move back in and work on the house. Staff connected him with Nate, Director of the Muncie Land Bank, to explore potential engineering assistance and options.
- **Action & Vote Disposition:** Approved by Voice Vote. Continued for 60 days.

02:13:28 Case 36: 326 North Davis Street (New Demo Order)

- **Sponsor / Presenter:** City Staff / Sean Leverton (Property Owner)
- **Deliberation Summary:** The owner owns the property as a secondary investment but suffered severe long COVID, hospitalization, and military service obligations with the US Army. He cleaned up trash, mows regularly, and secured a kicked-in door. He is currently fielding inquiries to sell the property.
- **Action & Vote Disposition:** Approved by Voice Vote. The demo order was affirmed and continued for 90 days (December hearing).

5. Open Public Comment / Citizen Forum

Note: There was no separate, general citizen forum session; public input occurred organically during individual case testimonies.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **02:20:05** Staff member provided an update on Case 14 (903 East Jackson Street), noting active communication with the owner's daughter and preservation staff to assist with rehabbing this long-vacant historic home in the Emily Kimbro Historic District.
- **Bulk Action Docket:**
 - **02:21:15** A bulk motion was made and seconded to adopt the building commissioner's office reports and staff recommendations as the findings of the hearing authority for all properties where no representative appeared: **Nos. 1, 3–8, 12, 14, 15, 19–25, 27, 28, 30, 31, 34, 37–41, 43, 44, 47, 53, 54, 58, 59, 62, 64, 67–78, and 80–82.** Approved by Voice Vote.
- **Adjournment:**
 - **02:22:17** Motion to adjourn made and approved by voice vote. (*Exact adjournment time not explicitly stated*).

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